Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

RESOLUTION NO. 130

RESOLUTION DIRECTING THE BANGSAMORO *DARUL-IFTA* TO ISSUE *FATWA* ON WHAT CONSTITUTE *HALAL* CONDUCT OF PUBLIC OFFICIALS AND EMPLOYEES, AS *KHALIFA*, IN THE BANGSAMORO AUTONOMOUS GOVERNMENT PURSUANT TO MORAL GOVERNANCE

WHEREAS, the Constitution provides that "Public office is a public trust. Public officers and employees must, at all times, be accountable to the people, serve them with utmost responsibility, integrity, loyalty, and efficiency; act with patriotism and justice, and lead modest lives.";

WHEREAS, our Bangsamoro Administrative Code, in view of its adherence to Moral Governance, has considered public office as "sacred public trust";

WHEREAS, under the principles of Moral Governance, public officers and employees are required, at all times, not only to be accountable to the people but to the Almighty God;

WHEREAS, public officers and employees in the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) are "*khalifa*" and, in public service, they shall act with the utmost responsibility, integrity, loyalty and efficiency, act with patriotism and justice, and lead modest lives;

WHEREAS, under the Bangsamoro Administrative Code, *khalifa* refers to a human as a vicegerent, trustee, steward of Allah (*Subhannahu Wa' Taalah*) on earth as provided;

WHEREAS, both the Bangsamoro Organic Law and the Bangsamoro Administrative Code underscored *halal* but only in the context of regulation, development, and certification of food and non-food industry within the BARMM;

WHEREAS, *halal* should not be limited in that concept on food and non-food industry for purposes of development, certification, and regulation but *halal* should also encompass public officers and employees' code of conduct and responsibility in the government in pursuant to the Bangsamoro Government affirmation that public office is a sacred public trust and that they as *khalifa*, they are trustee vicegerent, trustee, steward of Allah (*Subhannahu Wa' Taalah*) on earth and specifically as public servant in the BARMM;

WHEREAS, the Bangsamoro Autonomous Government should define the parameters on what constitute *halal* acts and conduct in the government;

WHEREAS, under the Bangsamoro Administrative Code, the Bangsamoro *Darul-Ifta* has the power to "promulgate *fatwa* (religious edicts) pertaining to the whole breadth of Islamic jurisprudence";

WHEREAS, the Bangsamoro *Darul-Ifta* can issue a *fatwa* in a Filipino and other major languages of Bangsamoro that shall define what constitute *halal* acts and conduct of Bangsamoro officials and members, being *khalifa*, in pursuit of Moral Governance thereby affirming that public office is a sacred public trust;

WHEREAS, the *fatwa* that shall be issued by the Bangsamoro *Darul-Ifta* can be considered by the Bangsamoro Parliament for purposes of possible codification as Code of Conduct of Bangsamoro in the Government.

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, to direct the Bangsamoro *Darul-Ifta* to issue *fatwa* on what constitute *halal* conduct of public officials and employees, in their capacities as *khalifa,* in the Bangsamoro Autonomous Government pursuant to moral governance.

RESOLVED, FURTHER, to forward this Resolution to the office of the Bangsamoro *Darul-Ifta* for information and appropriate consideration.

ADOPTED, June 24, 2021.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. ALI PANGALIAN M. BALINDONG
Speaker

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